



Judicial Review & Judicial Activism

Understanding the power of courts to check government actions, plus an inside look at how state governments actually function

State Executive & Legislature Explained

What is Judicial Review?

The Constitutional Checkpoint

Judicial review is the judiciary's power to examine laws and executive actions to ensure they align with the Constitution. It acts as a critical check on legislative and executive overreach.

Established through **Article 13, 32, and 226**, plus landmark Supreme Court judgments, this power allows courts to strike down unconstitutional legislation.



"If it violates the Constitution, the court shreds it."

Why Judicial Review Matters



Protects Rights

Safeguards Fundamental Rights enshrined in the Constitution from government violation



Maintains Balance

Preserves separation of powers between executive, legislative, and judicial branches



Prevents Abuse

Stops arbitrary or illegal actions by the State that harm citizens



Strengthens Rule of Law

Ensures everyone, including government, follows constitutional principles

Courts act as the ultimate "referee" when government tries to overstep its boundaries.

Judicial Activism: When Courts Step Up

Judicial activism occurs when courts go beyond traditional interpretation and proactively fill gaps left by legislative or executive inaction. Rather than waiting for government to act, activist courts take initiative to protect public interest.



Government Inaction

Legislature or Executive fails to address critical issues



PIL Filed

Public Interest Litigations bring matters to court's attention



Court Intervenes

Judiciary steps in with directions or guidelines

📄 **Famous Examples:** Vishaka Guidelines on workplace harassment, recognition of Right to Privacy as fundamental right



The Two Faces of Judicial Activism

✓ Pros

- **Protects public interest** when other branches fail to act
- **Forces government accountability** through court directions
- **Defends vulnerable groups** and environmental concerns
- **Fills legislative gaps** with progressive interpretations



✗ Cons

- **Risk of judicial overreach** into executive/legislative domain
- **Courts become unelected lawmakers** without democratic mandate
- **Creates tension** between branches of government
- **Questions of legitimacy** and separation of powers



State Executive Structure



The State Executive mirrors the Union government structure but operates at the state level. While the **Governor** serves as the constitutional head, the **Chief Minister** wields real executive power as head of the majority party.

Nominal Head

Governor = ceremonial authority

Real Boss

Chief Minister = actual power

Governor: Powers & Functions

Constitutional Head

Serves as the ceremonial head of the State, appointed by the President of India

Appointment Powers

Appoints the Chief Minister and other Ministers based on legislative majority

Legislative Role

Can reserve bills for President's assent when constitutionally required

Pardoning Power

Has authority to grant pardons, but limited to offenses under state laws

Emergency Powers

Can recommend President's Rule under Article 356 during constitutional breakdown

Looks powerful on paper... but mostly ceremonial in practice

Chief Minister: The Real Power

The Chief Minister is the **real head of State Government**, wielding actual executive authority. As leader of the majority party in the Vidhan Sabha, the CM directs all government operations and policy decisions.

01

Advises the Governor

Provides counsel on all state matters

02

Heads State Cabinet

Chairs cabinet meetings and coordinates ministries

03

Directs Administration

Controls bureaucracy and policy implementation

04

Shapes State Policy

Sets strategic direction for governance



□ In reality: "If CM sneezes, the whole state bureaucracy catches cold."



State Cabinet: Where Decisions Happen

The State Cabinet comprises the Chief Minister and other Ministers, forming the engine room of state governance. This is where **real decisions happen** — not in Raj Bhavan.

Day-to-Day Governance

Handles daily administration and crisis management across all departments

Policy Formulation

Designs and approves new policies for state development and welfare

Law Implementation

Ensures state and central laws are properly executed on the ground

Collective Responsibility

All ministers are jointly accountable to the Vidhan Sabha for decisions

Ministers run critical departments including **Finance, Education, Health, Public Works, Home Affairs**, and more — each responsible for their portfolio's performance.

State Legislature: The Democratic Core

Vidhan Sabha (Legislative Assembly)

- **Directly elected** by the people every 5 years
- **More powerful** than Upper House
- Controls budget and passes bills
- Can remove CM through No-Confidence Motion

Vidhan Parishad (Legislative Council)

- **Partly elected, partly nominated** — not by direct vote
- **Permanent body** with 1/3rd retiring every 2 years
- Can delay bills but cannot stop money bills
- Acts as thoughtful review chamber

Bicameral States: Only Bihar, Karnataka, Maharashtra, Telangana, Uttar Pradesh, and Andhra Pradesh have both houses. Most states operate with Vidhan Sabha alone.

Judicial Review

Constitutional watchdog

State Executive

CM leads, Cabinet executes

Legislature

VS = power, VP = review

